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U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 6497  
(FOURTH REVISION)

EXPIRATION DATE: September 30, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: FMC Corp., Agricultural Products Group  
Philadelphia, PA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Division 6.1 materials in a modified DOT Specification 56 portable tank. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.242, 174.63(c).
5. BASIS: This exemption is based on the application of FMC Corp., dated August 16, 1996, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials description<br>-- proper shipping name | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Carbamate pesticide, solid,<br>toxic                       | 6.1                          | UN2757                        | I                |

7. SAFETY CONTROL MEASURES:  
Packagings prescribed are DOT Specification 56 metal portable tanks, except a toggle type clamp ring is authorized in lieu of a bolted closure. Closure must be as described on Powell Pressed Steel Company drawings P- 5873 and 5270 and be capable of withstanding the test prescribed in Section 178.252-3. Each container must be marked "DOT-E 6497" instead of DOT 56. Tank must have no bottom outlets.

8. SPECIAL PROVISIONS:

a. The use of pneumatic dunnage as shown on FMC Corporation drawing dated April 2, 1975, on file with the Office of Hazardous Materials Regulation (OHMR) is authorized.

b. This exemption authorizes shipments only between FMC Corporation's plants by specially designed rail cars and motor vehicles in carload and truckload lots. Each transport vehicle must be loaded by the consignor and unloaded by the consignee.

c. Each portable tank must be plainly marked on both sides near the top, in letters at least 2 inches high on a contrasting background, "DOT-E 6497".

d. Consistent with the regulations adopted under Docket HM-181E for intermediate bulk containers (IBCs), exemptions for IBCs of the type covered by those regulations will not allow new construction after September 30, 1996. Existing IBCs may be continued in service, provided renewal provisions under Section 107.109 are met, until September 30, 1998 under the conditions specified in the exemption that applies to their use. After September 30, 1998, each IBC must conform to, and be certified as meeting, a UN IBC standard set forth in subparts N and O of Part 178 of the Hazardous Materials Regulations (HMR; 49 CFR). A provision for approval of an equivalent IBC is specified in 49 CFR 178.801(i)).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and rail freight.

10. MODAL REQUIREMENTS: No modal-specific requirements are required by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

*Marilyn J. Morris*

for Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

*November 12, 1996*  
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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